

to a committee's evaluation of a physician's competence. This is a dispute over SAMC's business decision to enter an exclusive hospitalist services contract with Vituity. The documents at issue relate to that business decision. As SAMC recognizes in its supplemental opposition, the hospital is distinct from its medical staff. (Supp. Opp. at 11 ['The Medical Staff and the Hospital are separate and distinct legal entities.'].) A hospital's contractual decision to close a service and award it to another firm is not a medical staff committee's candid appraisal of a peer. SAMC has not shown that the privilege applies here. Any documents withheld on the basis of section 1157 must be produced.

If a party properly asks for monetary sanctions, such sanction “shall” be imposed unless the court finds that party made or opposed the motion “with substantial justification” or other circumstances make the sanction “unjust.” (Code Civ. Proc., §§ 2031.310, subd. (h), 2023.030, subd. (a); see *Kravitz v. Superior Court* (2001) 91 Cal.App.4th 1015, 1021.) SAMC contends that sanctions are not warranted because it had to navigate complex and overlapping statutory privileges and protections, requiring careful, document-by-document review and redactions before production could be made. SAMC says it even in good faith unredacted some documents. SAMC’s arguments are not convincing.

It took 16 months for SAMC to produce all documents that have been produced, and there appear to be more that have not been produced. Documents have been withheld and redacted on the basis of improper objections such as irrelevance and unresponsiveness, and despite the existence of a protective order with a Highly Confidential designation that specifically exists for the purpose of production of "confidential" and "proprietary" information. Given the long history of this discovery dispute and SAMC's repeated failures to make full production, the court intends to award \$17,681.50, the full amount of sanctions requested by CCHMG in connection with this motion. (See Sarabian Supp. Reply Decl., ¶¶ 10; Code Civ. Proc., §§ 2023.030, 2031.310, subd. (h).) The court will not impose the issue sanction requested by CCHMG.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/24/26
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: **A. M. v. Fresno Unified School District**
Superior Court Case No. 22CECG02656

Hearing Date: August 26, 2026 (Dept. 501)

Motion: Plaintiff's Motion to Compel Deposition of Fresno Unified School District's Person Most Knowledgeable and Production of Documents

Tentative Ruling:

To grant Plaintiff, A.M.'s motion to compel the deposition of Fresno Unified School District's person most knowledgeable. Fresno Unified School District's is ordered to produce its person most knowledgeable on the categories identified in the notice of deposition at a mutually agreeable time within 14 days of notice of this order.

To deny Plaintiff, A.M.'s motion to compel the production of documents.

Explanation:

Plaintiff, A.M. ("plaintiff") moves the court for an order compelling the defendant Fresno Unified School District's ("FUSD" or "defendant") Person Most Knowledgeable ("PMK"), and production of documents by request at the time of deposition.

Background

Plaintiff noticed the deposition of FUSD's PMK for March 3, 2026. (Felton Decl., ¶2, Ex. 1.) FUSD served its objections on February 26, 2026. (Felton Decl., ¶3, Ex. 2; Berger Decl., ¶7, Ex. E.)

On March 27, 2026, plaintiff's counsel filed a motion to compel the PMK deposition, the hearing, which was initially set for May 21, 2026. On April 1, 2026, Plaintiff's counsel applied ex parte for an order shortening time for hearing on plaintiff's motion to compel the PMK deposition. On April 1, 2026, the court set a Pre-Trial Discovery Conference regarding plaintiff's motion to compel for April 17, 2026.

On April 17, 2026, a Pretrial Discovery Conference was held, resulting in an order providing "Plaintiff may file a motion to Compel." (Berger Decl., Ex. H.) Plaintiff's counsel then met and conferred with counsel for FUSD to clear August 25, 2026, as the hearing date for plaintiff's motion to compel. (Berger Decl., Ex. I.)

Meet and Confer

A motion to compel a deposition must include a meet and confer declaration stating facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion. (Code Civ. Proc., §§ 2025.450(b); 2016.040.)

Here, plaintiff's counsel made several attempts to resolve these discovery issues. (Felton Decl. ¶¶ 3-7.) Defendant contends that these conversations could have gone into more depth. (Berger Decl., ¶8.) However, the court finds these attempts sufficient under the present circumstances. On April 17, 2026, a Pretrial Discovery Conference was held, resulting in an order providing "Plaintiff may file a motion to Compel." (Berger Decl., Ex. H.) Plaintiff's counsel then met and conferred with counsel for FUSD to clear August 25, 2026, as the hearing date for plaintiff's motion to compel. (Berger Decl., Ex. I.)

Therefore, the Court finds that plaintiff has sufficiently met the meet and confer requirements.

Motion Papers

FUSD first argues that plaintiff did not properly notice this hearing. (FUSD's Opposition Papers, pg. 4:1-8.) However, this argument is without merit under these circumstances where FUSD tacitly accepted that this motion would be heard on August 25, 2026 as a result of the April 17, 2026 Pretrial Discovery Conference, and where the initial moving papers had set a hearing on this matter for May 21, 2026.

Compel Deposition

Plaintiff moves to compel FUSD to designate a PMK to speak on 16 separate categories of testimony and produce that person for deposition.

Code of Civil Procedure section 2025.450, subdivision (a) provides, "[i]f, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." Code of Civil Procedure section 2025.450 requires the Court to compel the deposition unless it finds a valid objection was served under Code of Civil Procedure section 2025.410. The objecting party has the burden to justify objections asserted. (See *Denari v. Superior Court* (1989) 215 Cal.App.3d 1488, 1494-95.)

FUSD argues that plaintiff's motion to compel deposition should be denied because plaintiff did not provide a separate statement, as required by California Rules of Court rule 3.1345, with its motion to compel deposition. FUSD did not discuss its objections as to why plaintiff's motion to compel FUSD's PMK should be denied. (FUSD's Opposition Papers, pp. 4:9-5:13.)

FUSD's argument fails, as the requirement for a separate statement does not apply in instances where FUSD failed to produce a deponent. According to California Rules of Court rule 3.1345(a)(4), a separate statement is required where a motion seeks to compel answers to questions that were asked at deposition but not answered.

Here, given that FUSD did not produce its deponent, it becomes impossible to know which questions would remain unanswered. Consequently, a separate statement could not feasibly list the full text of unasked questions and non-responses, as required by California Rules of Court rule 3.1345(c).

Therefore, the Court concludes that the requirement for a separate statement is not applicable in this context, given FUSD's failure to produce a deponent.

Compel Production

Plaintiff also seeks to compel, at deposition, production of 31 categories of documents.

Where production of documents is sought in connection with the deposition, the motion must set forth specific facts showing good cause justifying the production. (Code Civ. Proc., § 2025.450(b)(1).) These facts must also be set forth in a separate statement filed by the moving party. (Cal. Rules of Court Rule 3.1345(c).) This burden "is met simply by a fact-specific showing of relevance." (*TBG Ins. Servs. Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 448.)

Here, plaintiff fails to attempt to set forth any specific facts showing how information in the documents sought would tend to prove or disprove some issue in the case, or why such information is necessary for trial preparation or to prevent surprise at trial, nor has plaintiff set forth these facts in a separate statement.

Accordingly, plaintiff's motion for production of documents is denied.

Misuse of Discovery

FUSD further objects to the production of a witness and argues that plaintiff's notice of deposition under Code of Civil Procedure section 2025.230 with production of documents served 33 days before close of regular discovery, and 61 days before trial, was timed with the intent to cause unwarranted annoyance, embarrassment, oppression or undue burden and expense, as per Code of Civil Procedure section 2023.010, subdivision (c). (FUSD Opposition Papers, pg. 7:12-20.)

FUSD argues:

Regarding the "MATTERS ON WHICH THE WITNESS IS TO BE EXAMINED," there are sixteen extremely broad areas that, when expanded by the "DEFINITIONS" section, e.g., the use of "CHILDHOOD SEXUAL ASSAULT" and "BOUNDARY VIOLATION," among others, turns each of eleven of those areas into at least fifteen, and as much as thirty-nine, areas depending on which or both definitions are used. Further, and again, there is no indication that these overly broad areas of inquiry have any relevance whatsoever to the instant case, and Plaintiff has made no attempt to explain how

